

The Claremont City Council held a meeting on Wednesday, March 9, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward II Councilor James Contois
Ward I Councilor Andrew O'Hearne
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau (via telephone)
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges
At-Large Councilor Lucas Beliveau
At-Large Councilor Matthew Mooshian

Also present:

John MacLean, Interim City Manager
Lisa Richmond, Finance Director

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the minutes of the February 23, 2022, City Council meeting.

Mayor Girard said on page 6 that the roll call vote showed 6 for and 3 against, but the tally was 9-0; it should be 6-3.

Roll call vote:

Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes

Motion carried 9-0.

MAYOR'S NOTES

Mayor Girard gave a City Manager Recruitment Update including: 11 resumes have been received from 8 states, including 4 from New Hampshire; MRI (Municipal Resources Inc.) sent out essays to 7 of the 11 candidates; MRI will continue to accept resumes; essays are due within 2 weeks, and then phone interviews will be scheduled.

Claremont Fixed COVID-19 Test Site will be closing on March 15th at 3:00 p.m.

CITY MANAGER'S REPORT

General Remarks

- Mr. MacLean said as a result of information received from the CDC and Governor Sununu's policy on face mask protocols, the City is no longer mandating the wearing of face masks by employees. If asked, we will put one on.
- Recently, there have been several requests from several departments to waive the Purchasing Policy. One is the Sullivan smokestack; we were not able to get a structural engineer to respond to our RFQ. We have received a recommendation and have interviewed a firm and they will be on site Friday. He waived the requirement for the Purchasing Policy.
- In addition, he was asked to waive the Purchasing Policy for the environmental mitigation for the Route 12/103 North & Main Streets Intersection Project. There is a subcontractor that is available to us through the project firm, in order to keep us on schedule. He waived the Purchasing Policy.
- Steel Mill Solar agreement will terminate on March 22. So, this will be placed on the March 23 Council agenda for discussion.

Ms. Richmond said last month she discussed the City's Fund Balance. At that time, the Unassigned Fund Balance was projected to be \$3,922,947. Things have been different because of COVID, so she is using the trends from the last four years in her monthly Finance Reports. She gave a detailed explanation of the monthly Finance Report that is included in the Council packet. Revenues are coming in really strong, especially motor vehicle registrations. We are exceeding last year's numbers on that. We are projecting to put \$3,922,947 into Fund Balance this year.

Ms. Richmond said regarding Property Tax that we collect for the school and county. We payout to the school every month and to the county every year. Tax payments historically are between 93% and 94% collected. Last year we collected 97%. There is every indication that Property Tax Revenues will be the same as the prior year. Tax deeding is also an incentive for people to pay their property taxes.

Mark Brislin, Parks & Recreation Director, said that the TSV Basketball Tournament is back this year; 49 teams are participating. They started February 28 and will finish this Saturday with championship games. Justin Martin, Supervisor of Recreation & Programs, is the tournament director. Currently, there are four teams from Claremont left in the tournament.

Mr. Brislin said that the Parks & Recreation Commission is looking to bring a disc golf course to Moody Park. That discussion will be on the next Council agenda. The Parks & Recreation Commission is looking to reestablish the Dog Park Committee. There is around \$5,000 in a restricted donation fund for the dog park. He said the Eastern States Cup Enduro Race is coming back to Arrowhead on September 9-11. With fewer COVID restrictions, the CSBCC (Claremont Savings Bank Community Center) is seeing more memberships and day passes. The Parks & Recreation Commission is looking at ways to help increase revenues.

He has been collaborating with the Planning and Development Department regarding the application for Recreation Economy for Rural Communities Program (planning assistance program to help communities identify strategies to grow their outdoor recreation economy and revitalize their main streets). Claremont is a semi-finalist. We should know in a couple weeks if we are going to receive the program.

Mr. Brislin said he and Nancy Merrill, Planning and Development Director, have been working with community partners to organize a Pleasant Street Block Party, which is planned for July 9th. Ms. Merrill said they've met with the Greater Claremont Chamber of Commerce, Claremont MakerSpace, Claremont Opera House, West Claremont Center for Music and Art, and Amplified Arts. If anyone is interested in working on community events for this, they should contact Mr. Brislin.

APPOINTMENT TO BOARDS AND COMMITTEES

None.

CITIZEN'S FORUM

Mike Tetu, Ward 1, said the disc golf was a great idea. He acknowledged Braden Rostren and Logan Anderson, volunteers who help out at the Arrowhead Rental Shop. He acknowledged John Lambert for helping to get the Sno-Cat working and Larry Gower, who helps in the concessions. He talked about the Charter amendment and creating a committee to help the process go quicker. He volunteered to run that committee.

OLD BUSINESS

Transfer Station Recommendations

Mr. MacLean talked about the Transfer Station report that Alex Gleeson, Public Works Director, placed in the Council packet for the Council to consider regarding discontinuing the Transfer

Station, privatizing it, increasing some fees, and/or establishing a committee to review this issue. This is a service to the community.

Mr. Gleeson and Ted Wadleigh, Assistant Public Works Director, referenced the report that was in the Council packet. In 2015, the Transfer Station Ad Hoc Committee made a report and the decision was to remain status quo. They suggested having a decal system and some, not many, fees were increased. There have been no adjustments to the fees since 2016. Mr. Gleeson said a lot of the fees are below what haulers are charging. Costs are going up. He worked with Brian Patnoe from NH Solid Waste and it was determined that our facility is working as well as it can based on the hours of operation, manning, and tonnage received. He said the recommendation for Near Term is to keep the operation at status quo and look at increasing the fees during the upcoming budget season. For the Long Term, establish a committee to explore cost-effective methods while maintaining Claremont's proactive approach to reducing waste; do a full cost accounting report for the facility to get an in-depth look at the station; and the committee could explore facility upgrades, privatization, or closure. An option is to add balers for cardboard, plastic and cans. Facility upgrades could be to add scales. Based on current tonnage, if you charge by weight, there could be a significant offset to the cost. Privatizing would involve negotiating operational and financial changes (i.e. charge for recycling). Closing – Claremont would have to negotiate with other facilities (i.e. Newport and/or Charlestown).

Regardless of the decision, the City still has the post-closure monitoring and maintenance for the old landfill. Also, the City will still be responsible for waste collected around the City (municipal buildings, City trash cans, roadside waste, free tire day, and green-up Claremont days). Mr. Gleeson talked about the two employees who work at the Transfer Station two days a week and work around the City the other days of the week. The recommendation is to keep things as they are at this moment, reassess the Fee Schedule, and do more research into the options presented.

Councilor comments:

- People think of this as a tax savings, but it is a cost shifting; residents will pay higher fees for privatization
- Recommend a committee of three Councilors and citizens dive in and come back to the Council with recommendations
- Look at the Transfer Station as a business
- Send out Request for Proposal for companies to take over operations, in order to gather information

Mr. MacLean said this is a complicated business and there is a lot of money in it. The City is providing a service and it is being subsidized. Typically, haulers won't want to do the recycling, but that can be negotiated. Part of the discussion would be to find out how important it is to the community to divert waste (i.e. recycling). All that can be looked at by a committee and then give a specific schedule to report back to the Council.

- Councilors confirmed with Mr. Gleeson that workers at the Transfer Station would be absorbed into Public Works
- Not interested in establishing a committee

- Claremont should not be in the trash business
- Close the Transfer Station and take one person off the books
- Not all citizens use the Transfer Station, but everyone pays for it
- Don't want a committee. Have staff look at the costs and give the information to the Council
- Question about Transfer Station people being absorbed into Public Works

Mr. Gleeson said the two employees only work part time at the Transfer Station; the rest of the time, they are at the Highway Department. Seasonal help could be reduced in order to bring a full-time equivalent person over from the Transfer Station to the Highway Department. Mr. MacLean asked about staffing in Public Works. Mr. Gleeson said they are currently hiring for one position. The Transfer Station people are also used for sidewalks and City-wide clean up. People will be retiring. Mr. Wadleigh said he has been with the City for 12 years and in that time, Public Works has been down 4 positions.

Mike Tetu, Ward 1, said that he chaired the committee that got the Transfer Station going 32 years ago. He said he has a proposal that he gave to Mr. Gleeson that would eliminate the subsidy at the Transfer Station. He said to eliminate the subsidy, you would have to weigh trash. He wasn't on the Ad Hoc Committee in 2015, but he recorded 24 of the meetings. He said that asking people to drive to Newport to dispose of trash is a bad idea. His proposal is to fund \$60,000 this year instead of \$120,000; transition to weighing the trash; and increase the per bag fee to \$5 from \$3. He thought the Transfer Station should be an enterprise fund, or maybe a special revenue fund. He suggested to fund \$60,000 this year and then nothing next year, and this should start June 1st.

After discussion, Mr. MacLean asked to have this on the first meeting in April. He said he heard a consensus of the Council to go out and look at other operations in the state, and to get a couple of prototypes and to come back to the Council. He is hearing that the Council does not want to create a committee at this time. Also, He is hearing the Council wants to see what an RFP would look like with respect to privatizing this operation, either in a hybrid form or all together.

Councilors:

- Want to hear what Mr. Tetu is proposing

Mr. MacLean said that Mr. Tetu can weigh in when the report is given at the April 13th meeting. Mr. Tetu said he's ready to start weighing on June 1st, and now he's being told to wait, so this is awkward for him.

- Want to give other people, who worked on the committee, a chance to weigh in
- It's important that Mr. Tetu's data be included in the discussion
- Would like to see Mr. Tetu's proposal in final form for the April 13 meeting
- Not opposed to having a time-bound committee
- Would be good to involve citizens

A motion was made by Councilor Stone and seconded by Councilor Beliveau to place the RFP on the April 13th Council agenda.

Mr. MacLean clarified that Council is looking for a Request for Proposal document that would solicit interest on the part of outside vendors in this respect. He said we have Mr. Tetu's proposal relative to how we can breakeven running the operation ourselves. If Mr. Tetu can work with Mr. Gleeson, we can flush that out more, so that Council could have two things to look at. This will not be the same as having weighed in with a committee and taking a lot of time and effort, surveying the community, etc.

There was consensus of the Council to place this on the April 13th agenda.

There was concern to make sure that all interested parties are able to share their ideas with Mr. Gleeson. Mr. MacLean said that is the case for a committee.

Councilor Stone withdrew his motion and Councilor Beliveau withdrew his second.

Mayor Girard said this will be on the April 13 agenda.

Hazard Mitigation Plan Update

A motion was made by Councilor Stone and seconded by Councilor Beliveau to take Hazard Mitigation Plan Update off the table.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Fire Chief Bryan Burr said that this plan has the potential to reduce loss of life and property. Also, it is critical for procuring federal money.

Vickie Davis, Upper Valley Lake Sunapee Regional Planning Commission, said that this Hazard Mitigation Plan has been reviewed by the state and is tentatively approved until the City adopts it. She had a great committee to work with on this and it is a good document.

**A motion was made by Councilor Koloski and seconded by Councilor O'Hearne that
WHEREAS, the City of Claremont received assistance from the Upper Valley Lake
Sunapee Regional Planning Commission through funding from the NH Homeland Security**

and Emergency Management to prepare a hazard mitigation updated plan; and WHEREAS, several planning meetings to develop the hazard mitigation plan update were held in October and November 2021 and then presented to the City Council for review and discussion on March 9, 2022; and WHEREAS, the Claremont Hazard Mitigation Plan Update 2022 contains several potential future projects to mitigate the hazard damage in the City of Claremont; and WHEREAS, the City Council held a public meeting on March 9, 2022 to formally approve and adopt the Claremont Hazard Mitigation Plan Update 2022.

RESOLVED by the City of Claremont City Council:

1. The Plan is hereby adopted as an official plan of the City of Claremont;
2. The respective officials identified in the mitigation strategy of the Plan are hereby directed to pursue implementation of the recommended actions assigned to them;
3. Future revisions and Plan maintenance required by 44 CFR 201.6 and FEMA are hereby adopted as a part of this resolution for a period of five (5) years from the date of this resolution.
4. An annual report on the progress of the implementation elements of the Plan shall be presented to the City Council by the Emergency Management Director.

Roll call vote:

Contois - yes
O'Hearne - yes
Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

NEW BUSINESS

Proposed Payment in Lieu of Taxes (PILOT) Agreement, with Great River Hydro, LLC,
in Accordance with RSA 72:74 – Public Hearing

Steve Hamilton, City's Contract Assessor, said that this facility is located, in part, in Claremont. Great River Hydro operates the Bellows Falls hydro facility. The property is a renewable energy generator and qualifies for a Payment in Lieu of Taxes (PILOT) under RSA 72:74. There are three other hydro facilities that have existing PILOTs with the City. In addition to offering this type of agreement (for flowage) to this entity, it would also have to be offered to other similar entities, however, at this time, there are no others. There have been a number of property tax appeals for this property for several years. This agreement will resolve that without any refunds. This agreement is for seven years. The PILOT payments will be \$33,657 per year through tax year 2027. In exchange, the taxpayer agrees to withdraw the tax appeals. If something happens

and the facility were to be impaired, this agreement would be invalidated and they would return to regular taxation.

Mayor Girard opened the public hearing.

Mr. MacLean said the PILOT is a good settlement because we don't have to repay any of the taxes paid previously. Our valuation was high and inaccurate. The PILOT is fair. Mr. Hamilton said the PILOT is the fairest way to settle current disputes, and gives long-term protection to the taxpayer.

Mayor Girard closed the public hearing.

A motion was made by Councilor Contois and seconded by Councilor Stone that the Claremont City Council, pursuant to RSA 72:74 and after public hearing duly noticed, approves the proposed Payment in Lieu of Tax Agreement (PILOT) between the City and Great River Hydro, LLC for a hydroelectric facility located along the Connecticut River and identified in the City's records as Map 999 Lot 7 (the Property), and further authorizes the City Manager or his designees to take all such actions as may be necessary to execute said PILOT and implement this motion in accordance with state law and regulation.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Class VI Roads Update

Mr. MacLean said this Class VI Road Process gives the Council an idea of the questions that would be asked in the event someone wants to make changes on a Class VI road. Any request would be brought to the Council along with the City's recommendations.

Mr. Gleeson said this will streamline the process regarding requests to change Class VI roads. There are 16 Class VI roads in Claremont. This process will assure that any requests get vetted through the appropriate City departments.

- Step 1 – Written inquiry
- Step 2 – 10 business days to notify the requestor that the inquiry has been received

- Step 3 – Within 45 days, Public Works notifies the requestor of the findings, recommendations, and/or resolution
- Step 4 – Bring request forward to Council if vote or approval is required

Mr. MacLean said that the City will not provide maintenance for any Class VI road, unless it is in the City's best interest to do so. The City retains the right to discontinue that activity, without having to go through any other process, and the City would assume no liability.

Councilor O'Hearne asked why there was reference to 10 business days in one section and then 45 days in another section. Mr. Gleeson said he can clarify.

A motion was made by Councilor Koloski and seconded by Councilor Stone to accept the report as written.

Roll call vote:

Contois - yes

O'Hearne - no

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 8-1.

Acceptance of Multi-Year Lease for Vehicles

Mr. MacLean said in order for the City to go out for a multi-year lease, Council approval is needed. The lease document has a non-appropriation clause in it.

Ms. Richmond said the offer on this is good until next Monday. The money will come from the Sewer and Water Enterprise Funds. This year's payment is in this year's budget. Regarding the vehicle that is being replaced, the City will try to get the most money for it.

A motion was made by Councilor Limoges and seconded by Councilor Koloski that the Claremont City Council hereby authorizes the City Manager to enter into a multi-year lease agreement for a Sewer vacuum/jetter combo truck and a 1-ton extra cab pickup for the Public Works Department, in the amount not to exceed \$564,900 the expenditure for the first year of the lease being \$59,276.00; said costs have been raised and appropriated in the 2022 budget. The proposed lease agreement contains a termination clause in the event of non-appropriation of sufficient funds for any subsequent year of lease.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Resolution 2022-21 Accept and Expend K-9 Unit Grant – Public Hearing

WHEREAS the City of Claremont has been awarded a grant from the Stanton Foundation (Stanton) for the K-9 Unit in the amount of \$32,000.00 for the purpose of covering the costs associated with the program; and

WHEREAS the City would like to accept and expend the grant funds for their intended purpose;

NOW THEREFORE BE IT RESOLVED that the City Council hereby accepts The Stanton Foundation grant for the K-9 Unit in the amount of \$32,000.00; and

BE IT FURTHER RESOLVED to raise and appropriate the sum of \$32,000.00 for the Police Department (from off-setting grant revenue) for the K-9 Unit; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. *(2/3 Vote Required)*

Deputy Police Chief Mark Grasso said this is to request the grant funds for a second K-9 from the Stanton Foundation. One of the requirements of the grant is that the dog be cross-trained in narcotics detection. This grant will bring on a second dog and will help offset the cost of equipment, vehicle, dog, and food. The two K-9 teams will be working on opposite shifts. There will be two K-9 vehicles.

A motion was made by Councilor Contois and seconded by Councilor Stone to adopt Resolution 2022-21 Accept and Expend K-9 Unit Grant.

Councilor Contois read the resolution into the record.

Roll call vote:

Contois - yes

O'Hearne - yes

Stone - yes
Matteau - yes
Koloski - yes
Limoges - yes
Beliveau - yes
Mooshian - yes
Girard - yes
Motion carried 9-0.

COMMITTEE REPORTS

Councilor Stone said that the Policy Committee is working on a Council Rule change regarding RSA 91-A requests. He said the Policy Committee was charged with coming up with a policy on how the Council would handle 91-A requests. The Policy Committee decided to make it a Council Rule instead of a policy. He handed out a copy of the proposed Council Rule change and asked to put this on the next Council agenda.

Councilor Contois said that the Historic District Commission is reviewing signs. The Commission toured Pleasant Street and they are trying to come up with a policy to make the signs standardized, and also looking at the enforcement side of that.

Councilor Koloski said the Claremont Planning Board is still finalizing the CIP (Capital Improvements Plan). They approved the kidney dialysis center going into the old Rite Aid building, on Washington Street. They approved Mr. Lemieux to put a building back on a foundation on River Road. They approved an application for a Town Fair Tire to go into the Market Basket Plaza.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski asked to get an update on the air handling units in Council Chambers. Mr. MacLean asked if there was a directive in the past. Councilor Koloski said he asked, but there was no response. Mayor Girard said he believes former City Manager Morris was looking into ARPA funds for this. Mr. MacLean asked if there is a definition of CIP items, in terms of the value and how long the asset will last. Councilor Koloski said they are ranked through a process from 1 to 5; whether or not the item is legally required; and the Planning Board rating, but he doesn't believe there is a specific definition. Mr. MacLean said typically there would be a threshold in terms of value and how long the asset would last. He said this may or may not be on the CIP list.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 8:33 p.m., a motion was made by Councilor O’Hearne and seconded by Councilor Beliveau to adjourn.

Roll call vote:

Contois - yes

O’Hearne - yes

Stone - yes

Matteau - yes

Koloski - yes

Limoges - yes

Beliveau - yes

Mooshian - yes

Girard - yes

Motion carried 9-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council